

KRPAN v. SLIGHT et al

20CV44854

REALTOR DEFENDANTS' MOTIONS TO COMPEL FURTHER RESPONSES TO RPDS, FROGS AND SROGS

This is a civil action based on a residential real property transaction allegedly tainted by construction and undisclosed defects. Before the Court are three additional discovery motions filed by the “realtor defendants” against plaintiff. (Although the time is not yet upon us, this Court notes that if called upon to resolve many more discovery disputes, a discovery referee may be appointed.)

The first motion involves a request for production of all communications concerning the subject property between plaintiff and Tanko Well Drilling (No. 10), Dave’s Plumbing (No. 11), AL Guy Jordan Company (No. 13), Mark Lawrence Baymiller (No. 15), Life Safety Fire Protection (No.17), American Gutter Solutions (No. 18), and Weatherby-Reynolds Consulting Engineers, Inc. dba Weatherby-Reynolds-Fritson Engineering (No. 19). For each, plaintiff *initially* responded as follows: “after a diligent search and reasonable inquiry, Responding Party is unable to produce documents responsive to this request because no such documents are in the Responding Party’s possession, custody, or control.”

Defendants are correct that the *initial* response was not code-complaint. (See CCP §2031.230.) Plaintiff has since served a supplemental response, which also is not code-complaint since “not locating documents” and “no documents in possession” are not responses enumerated in §2031.230. Defendants have accepted the supplemental response, but now contend that no documents were actually provided (despite a representation that some documents were attached to the supplemental response). A request for actual documents to be produced is a *different* motion than one seeking a code-compliant response, and is difficult to resolve in a vacuum. As such, this Court will GRANT the motion for a code-compliant response, and order plaintiff to produce the

written response, INCLUDING all located responsive documents, within 20 calendar days of this Ruling.

The second and third motions involve responses to interrogatories. The party responding to interrogatories has an obligation to provide responses which are “as complete and straightforward” as possible, which obligates the party to make a “reasonable and good faith effort to obtain the information” from sources within its reach/control. (CCP §2030.220.) Here, plaintiff generally claimed to either not have the information sought, or invited defendants to “see” some other document and find the answer for themselves. This response is not code-complaint. In addition, the purpose of discovery is to take the “game” element out of trial preparation by enabling parties to obtain the evidence necessary to evaluate and resolve their dispute beforehand. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107; *Roche v. Hyde* (2020) 51 Cal.App.5th 757, 815.) Requiring the asking party to hunt for the legal basis of a claim is improper. Moreover, to rely on the “see my pile of records” option for responding to interrogatories, plaintiff must show that (1) a compilation, abstract, audit or summary of the responding party’s records is necessary in order to answer the interrogatory; (2) no such compilation, abstract, audit or summary of the responding party’s records presently exists; (3) the burden or expense of preparing or making the compilation, abstract, audit or summary of the responding party’s records would be substantially the same for the propounding party; AND (4) the responding party has specified the writings with sufficient detail to permit the propounding party to readily locate and identify where in those records the interrogatory answer lies. (CCP § 2030.220.) There is no indication in the verified discovery response or in counsel’s declaration regarding (1) necessity, (2) burden/expense, or (3) specification. Simply offering to produce files without the required elements established is insufficient to support the ‘production’ option. (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 815. See also, *Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1190; *Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 293.)

Although plaintiff has now provided supplemental responses, sifting through the stack to determine if the supplemental responses are code-compliant is simply unreasonable. The motion to compel a further, code-compliant response is GRANTED. Plaintiff shall provide an appropriate, code-compliant, verified response within 20 calendar days of this Ruling.

Finally, there is the issue of sanctions. Opposing discovery motions with supplemental responses is not substantial justification. Although the meet and confer effort for these particular motions could have been better, “An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances, the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success.” (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432–433.) The history of this case suggests defendants did enough in this instance. Defendants are entitled to recover the \$60 filing

fee for each motion. For the RPD, this Court finds that 2 hrs (@ \$225/hr) is sufficient. For the interrogatories, this Court finds that 2 hours (@ \$225/hr) also is warranted. Thus, plaintiff is ordered to pay defendants \$510 for the RPD motion and \$510 for the interrogatory motion, within 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare a formal Order for their respective motions pursuant to CRC 3.1312 in conformity with this ruling.